

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/18/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0004594

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: ALLISON FAUST

vs.

DEFENDANT: TEOBALDO SCHUJMAN,
ET AL

NATURE OF PROCEEDINGS: MOTION – OTHER: DEFENDANT TEOBBALDO SCHUJMAN AND CARMEN ALICIA SCHUJMAN'S MOTION FOR ENTRY OF INTERLOCUTORY JUDGMENT FOR ATTORNEYS FEES AWARDED AND FOR ENTRY OF INTERLOCUTORY JUDGMENT FOR SANCTIONS AWARDDE

RULING

Defendants' motion for entry of interlocutory judgments is **DENIED**.

Procedural Background

On June 27, 2025, the Court entered an Order awarding Defendants \$3,115 in discovery sanctions. (Declaration of Patricia Conway ("Conway Decl."), ¶7 and Exh. D.) On October 14, 2025, the Court entered an Order awarding Defendants \$36,560 in attorney's fees and costs under Code of Civil Procedure Section 405.38. (Conway Decl., ¶3 and Exh. A.) Plaintiff has not made any payment toward the fee award and has paid \$1,000 towards the sanctions award. (Conway Decl., ¶7.)

Defendants request that the Court enter an interlocutory judgment as to the unpaid amount for each order, plus interest at 10% per annum from the date of each order.

Defendants' Objections

The Court does not rule on Defendants' objections to Plaintiff's declaration as Plaintiff's declaration has no impact on the Court's ruling.

Discussion

Defendants' motion is denied. The sanction order already has the full force and effect of a money judgment which Defendants can enforce through execution. (See *Newland v. Superior*

Court (1995) 40 Cal.App.4th 608, 615 [“monetary sanction orders are enforceable through the execution of judgment laws. These orders have the force and effect of a money judgment, and are immediately enforceable through execution”] [citation omitted]; *Constellation-F, LLC v. World Trading 23, Inc.* (2020) 45 Cal.App.5th 22, 30 [“Sanctions orders have the full force and effect of a money judgment”]; *Jones v. Otero* (1984) 156 Cal.App.3d 754, 759 [“An order imposing monetary sanctions may be enforced under the Enforcement of Judgments Law”]; Edmon & Karnow, *Cal. Prac. Guide: Civil Procedure Before Trial*, ¶9:1285 (Rutter Group June 2026 Update) [“A sanctions order is enforceable the same way as a ‘money judgment’; i.e., a writ of execution may be issued by the court and levied on the property of the person sanctioned”] [emphasis in original].) The attorney’s fee order may also be enforced through the Enforcement of Judgments Law. (See *Alioto Fish Co. v. Alioto* (1994) 27 Cal.App.4th 1669, 1686-1687.) Defendants therefore do not need interlocutory judgments to begin collection efforts under the mechanisms provided in Code of Civil Procedure Section 680.010 et seq., which include but are not limited to writs of execution.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/18/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0006315

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PETITIONER: ROBERT ALLEN
RAUDSO

vs.

DEFENDANT: JOSE GUILLEN ET AL.

NATURE OF PROCEEDINGS: MOTION – RELIEVE COUNSEL

RULING

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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